

CITY CONTRACT NO. _____

ADULT SOFTBALL OFFICIATING AGREEMENT

This Agreement is made and entered into this _____ day of _____, 2022, by and between the City of Cheyenne, a municipal corporation of the State of Wyoming, 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, hereinafter referred to as "City," and the Cheyenne Umpires Association, 1505 East 16th Street, Cheyenne, Wyoming 82001, hereinafter referred to as "Association."

W I T N E S S E T H:

NOW, THEREFORE, in consideration of the mutual covenants and conditions contained herein, it is hereby agreed as follows:

1. **Leagues and Role.** Association will umpire and score games and tournaments during the City's 2022 season for Adult Men's and Women's Softball Leagues, Co-Rec Softball League, and tournaments scheduled by the City of Cheyenne Recreation Division.
2. **Game Fee to Umpires and Scorekeepers.** City shall pay umpires Thirty-Five Dollars (\$35.00) per Adult Men's and Women's Softball games, Adult Co-Rec Softball games, and Tournament games (one umpire required), and Fifteen Dollars (\$15.00) per game to the scorekeeper (one scorekeeper required). Umpires in Training will receive Fifteen Dollars (\$15.00) per game up to ten (10) games total. Refer to 4. Payment for tracking and payment of Umpires in Training.
3. **Additional Fees.** Association will charge City a one-time \$600 annual administrative service fee for the three leagues (Men's Softball League, Women's Softball League, and Co-Rec Softball League) and tournaments. In addition, a \$.35 (thirty-five cents) per scheduled game fee will be charged to the City.

4. **Payment.**
 - a. Association will invoice the City for the first 400 games. Upon receipt of the invoice, City will process immediately through the City Treasurer's Office payable system. The City processes invoices on a schedule with payable cut-off dates, submits to City Council approval process, and then checks are cut and mailed. Association may turn in the first 400 games invoice immediately following approval of this Agreement.
 - b. Association will invoice the City for the subsequent games to be umpired by the Association for the balance of the initial league as scheduled by the City shall be submitted prior to the mid-point of the season.
 - c. Within thirty (30) days after the conclusion of each league, the City will invoice Association for all fines accumulated and credit any games not paid for. Association shall pay invoice within 45 days of receipt of the invoice.
 - d. Association will invoice City immediately following a tournament, and the City will process the invoice through the normal City Treasurer's Office payables system.
 - e. Association will invoice City for Umpires in Training separately. Invoice will include Umpire in Training names, dates, and number of games officiated.
5. **Assignment of Umpires and Scorekeepers.** Association shall provide and assign one (1) umpire and one (1) scorekeeper for the Adult Men's and Women's League, the Co-Rec Softball League, and City tournaments to umpire and score games as referred to above according to the schedule provided to the Association by the City.
6. **Schedule.** Association shall provide the City with a schedule of the umpires and scorekeepers assigned to each game at least two (2) weeks in advance of each game.
7. **Contacts.** Association shall provide the City with a list of names and telephone

numbers of all Association personnel and officials at least one (1) week before the first game of a tournament or a league game. The Association will update the list as changes occur and provide a copy to the City.

8. **Training.** Association shall ensure that all umpires assigned to the games are properly trained and certified to perform their duties in accordance with the current year's Cheyenne Community Recreation and Events, Recreation Division's By-Laws, League Rules, and National Association Code and Rule Book. The City Recreation Division will provide to Association Bylaws and League Rules two (2) months prior to the first game.
 - a. Any umpire or scorekeeper deemed by the City not to be properly trained or able to perform their duties can be prohibited by the City to umpire or score.
9. **Uniform.** Umpires are required to wear a uniform designated by the Association.
 - a. *There will be a Five Dollars (\$5.00) fine for not being properly dressed as stated in this Agreement.*
10. **Ejections.** Association must report all player ejections to the site supervisor on the same day of the game by completing the required ejection form.
11. **Inclement Weather.** Parties mutually agree that if inclement weather begins after the umpires and scorekeeper have arrived for the first scheduled game and the game is cancelled before being started, the umpires and scorekeepers will receive travel pay in the amount of \$5.00 each. The umpires and scorekeeper must sign in.
 - a. The parties further agree the maximum delay due to inclement weather will be thirty (30) minutes.
 - b. If games are cancelled due to inclement weather, all subsequent games are cancelled.

- c. It is further agreed that on weekends (tournaments only), the decision to cancel one or more games at a given field will not prohibit games on that field from resuming at a time specified by the City.
 - d. The parties mutually agree if a game is cancelled due to weather after being started and within 20 minutes into the game, the Association will be paid half the current game fee \$17.50 for umpires, \$7.50 for Umpires in Training, and \$7.50 for scorekeepers. If a game is cancelled due to weather after being started and 21 minutes into the game, Association will be paid the full game fee.
12. **Cancellations.** City will notify Association of any cancellations or forfeitures by 3:30 p.m. on the day of the scheduled game. If notification is made after 3:30 p.m., City will pay the Association the game fee to the umpire(s) and scorekeeper(s). If a game is cancelled or forfeited and the Association was notified by 3:30 p.m., the Association will not be paid for the game if it is a first or last game.
13. **Reporting into Site Supervisor.** The Association hereby agrees that should it fail to provide the proper number of umpires and scorekeepers in a timely manner as required by this Agreement it shall pay the City fines for each failure as per the following:
- a. Association shall ensure that umpires and scorekeepers sign-in with the site supervisor at least ten (10) minutes prior to the scheduled game time. A sign-in sheet will be provided to the site supervisor by the City.
 - i. *In the event an umpire/scorekeeper is late signing in with the Site Supervisor, the Association will be fined Five Dollars (\$5.00) each.*
 - b. If umpires/scorekeepers fail to sign in prior to scheduled game time:
 - i. *One half the current umpire fee per umpire will be fined.*

ii. *One half the current scorekeeper fee per scorekeeper will be fined.*

14. **Scoring.** Association scorekeeper shall keep and maintain a score book, score report form, and distribute lineup cards for each game. The scorekeeper shall mark the official starting time for each game in the scorebook and enter the first initial and last names of each player into the score book. The scorekeeper shall also fill out the score report form and have the umpire sign score book after each game to verify the score of each game and then the scorekeeper shall turn in the score report form to the site supervisor.

a. *Failure to turn in the score report form, the Association will be fined Ten Dollars (\$10.00) per game*

b. *Failure to report a score correctly, Association will be fined Ten Dollars (\$10.00) per game.*

- c. **Sanctioned League.** City shall provide a National Association sanctioned league and maintain all requirements for sanctioning.

15. **Independent Contractor.** At all times during the term of this Agreement, the Association shall be considered an independent contractor. Neither the Association nor anyone employed by it shall represent, act, purport to act, or be deemed to be the agent, representative, employee, or servant of the City.

16. **Acceptance Not Waiver.** The City's approval of, acceptance of, or payment for any of the services of this Agreement shall not be construed to operate as a waiver of any of the City's rights under this Agreement or any of its legal rights under statute or common law arising out of the performance of this Agreement.

17. **Default.** Every term and condition contained in this Agreement, including payment obligations, shall be deemed a material element of this Agreement. In the event either

party should fail or refuse to perform according to the terms of the Agreement, such party may be declared in default.

18. **Remedies.**

a. In the event that the City declares the Association in default of this Agreement, the City shall notify the Association in writing. The Association shall be allowed a period of thirty (30) days to cure the default. In the event the default remains uncorrected, the Association may elect to:

- i. Terminate the Agreement and seek damages,
- ii. treat the Agreement as continuing and require specific performance; or,
- iii. avail itself of any other remedy at law or equity.

19. **Termination.** The City representative may, by thirty (30) days written notice to the Association, terminate this Agreement in whole or in part for the City's convenience. In the event of termination for convenience, the City will pay the Association for work performed as of the date of termination.

20. **Notices.** All notices arising out of or from the provisions of this Agreement shall be in writing and given to the parties either by regular mail or delivery in person as follows:

Cheyenne Umpires Association
Attn: Todd Strickler
1505 East 16th Street
Cheyenne, Wyoming 82001

City of Cheyenne, CRE
Recreation Division
1317 Parsley Blvd.
Cheyenne, Wyoming 82007

21. **Waiver.** The waiver by either party of any term, condition, covenant, or breach of any term, condition or covenant shall not constitute a waiver of any other term, condition, or covenant or the breach thereof.

22. **Governing Law, Jurisdiction, and Venue.** The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.
23. **Compliance with Laws.** The parties agree that they will perform their obligations as provided in this Agreement in accordance with the applicable laws and ordinances.
24. **Severability.** If any provision, section, subsection, sentence, clause, or phrase of this Agreement is invalidated by any court of competent jurisdiction, such holding will not affect the validity of the remainder of the Agreement, which shall continue in full force and effect.
25. **Successors and Assigns.** All the terms, conditions, and provisions herein shall inure to the benefit of and be binding upon the parties hereto and their respective successors and assigns.
26. **Assignment.** Neither party shall assign this Agreement and any attempt to assign shall be void without prior written consent of both parties. Any delegation or assignment shall not operate to relieve either party of its responsibilities under this Agreement. However, nothing in this Agreement shall prohibit the Association from subcontracting to a qualified subcontractor with written consent of the City.
27. **Drug-Free Workplace.** In compliance with the Drug-Free Workplace Act of November 1988, the City has established an alcohol and controlled substance policy that pertains alcohol and drug usage by City employees. All independent contractors under contract with the City, and their employees or subcontractors, are required to comply

with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Association while performing the duties and responsibilities of this Agreement. It is the responsibility of the Association to familiarize itself with the requirements of this policy and to inform all its employees and subcontractors of the requirements and to insure compliance with it. If the Association, its employees, or subcontractors are found in violation of this policy, this Agreement may be terminated.

28. **Minority Business Enterprises.** All parties to this Agreement assure that no person shall be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin, or sex. The parties further assure that it will include the language of this paragraph in all agreements associated or connected in any way with this Agreement and shall cause all existing Agreements to similarly include this clause therein.
29. **EEOC and ADA Compliance.** The Association is notified that it must comply fully with all requirements of the Equal Employment Opportunity Commission (EEOC) and the Americans with Disabilities Act (ADA) in the same manner as is expected from the City. If the Association or its employees or subcontractors are found in violation of these requirements, this Agreement may be terminated. The Association shall be responsible for all non-compliant action and shall defend, hold harmless, and indemnify the City from such action.
30. **Governmental Immunity.** The City reserves all immunities and defenses available under the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, *et seq.*

31. **Term.** This Agreement shall commence on the ____ day of ____, 2022 and conclude on the last day of the 2022 Adult Co-Rec Softball season.
32. **Entire Agreement of Parties.** This Agreement contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter. Time is of the essence.

In witness thereof, the parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out above and certify that they have read, understood, and agreed to the terms and conditions of this Agreement.

CITY OF CHEYENNE, WYOMING

By: _____
Patrick Collins, Mayor

(SEAL)
Attest:

Kristina F. Jones, City Clerk

Cheyenne Umpires Association

By: _____

Print Name: _____

Title: _____